

Tentative Rulings for August 12, 2026 Department 3

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 3 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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1.

CASE #	CASE NAME	HEARING NAME
CVCO2600654	HOUSE OF HOOKAH LLC vs CITY OF RIVERSIDE	PETITION FOR WRIT OF ADMINISTRATIVE MANDATE AND TRADITIONAL MANDATE

Tentative Ruling:

The Writ of Administrative Mandate is denied. The parties should be prepared to discuss moving forward with the traditional mandate cause of action.

2.

CASE #	CASE NAME	HEARING NAME
CVCO2600654	HOUSE OF HOOKAH LLC vs CITY OF RIVERSIDE	DEMURRER ON OTHER PETITION

Tentative Ruling:

Writ of Mandate:

A proceeding for the issuance of a writ of mandate is a special civil proceeding governed by the provisions of CCP § 1063 et. seq. Controlling statutes provide for review of administrative actions and decisions in two types of mandate proceedings: ordinary (traditional) mandate (CCP § 1085) and administrative mandate (CCP § 1094.5.) The type of mandate applicable in any case is determined by the nature of the administrative action or decision to be reviewed. (*Tielsch v. City of Anaheim* (1984) 160 Cal.App.3d 570, 574.)

First Cause of Action for Writ of Administrative Mandate:

An administrative writ may be issued to inquire into the validity of any final administrative order or decision made as the result of a proceeding where a hearing is required to be given and evidence is required to be taken. (CCP § 1094.5(a).) Pursuant to CCP §1094.5, the court's inquiry into the validity of an administrative order or decision shall extend to questions regarding: (1) whether the agency proceeded without or in excess of jurisdiction; (2) whether there was a fair trial; and (3) whether there was any prejudicial abuse of discretion. With narrow exceptions, the court's inquiry under section 1094.5 is limited to the administrative record made before the agency. (*City of Hesperia v. Lake Arrowhead Community Services Dist.* (2019) 37 Cal. App. 5th 734, 766.)

The City argues that the first cause of action is time-barred. A demurrer based on a statute of limitations defense lies only where it appears clearly and affirmatively on the face of the complaint that the claim is barred. (*Committee for Green Foothills v. Santa Barbara Bd. of Supervisors* (2010) 48 Cal. 4th 32, 442.) "While a demurrer based on statute of limitations lies where the dates in question are shown on the face of the complaint, if those dates are missing, there is no ground for a general demurrer. (*United*

Western Medical Centers v. Superior Court (1996) 42 Cal. App. 4th 500, 505.)

Pursuant to CCP § 1094.6, any petition [for judicial review of a local agency's decision] shall be filed not later than the 90th day following the date on which the decision becomes final. If there is no provision for reconsideration of the decision, or for a written decision or written findings supporting the decision, in any applicable provision of any statute, charter, or rule, for the purposes of this section, the decision is final on the date it is announced... If there is a provision for reconsideration, the decision is final for purposes of this section upon the expiration of the period during which such reconsideration can be sought; provided, that if reconsideration is sought pursuant to any such provision the decision is final for the purposes of this section on the date that reconsideration is rejected. (CCP § 1094.6(b).) Section 1094.6 is a procedural statute of limitations which is jurisdictional and the court may not entertain a 1094.6 petition unless it is filed on or before the 90th day after the local agency's decision. (*Tielsch v. City of Anaheim* (1984) 160 Cal. App. 3d 576, 578-79.) The limitations period is triggered by the date on which the decision becomes final rather than on service of the decision. (*Citicorp North America, Inc. v. Superior Court* (1989) 213 Cal. App. 3d 563, 568.)

Based on the facts appearing on the face of the Petition, following the May 23, 2025 inspection of the Business, the City asserted that certain licenses were expired and initiated enforcement proceedings. (Pet., ¶ 4.) On or about August 5, 2025, the Riverside Police Department issued a written notice entitled "Owner Notification of the Revocation of the Tobacco Retail Establishment Permit," stating that the tobacco retail permit was revoked pursuant to Riverside Municipal Code section 6.24.120(A) and advising that the revocation would be stayed if a timely request for an administrative hearing was filed within ten days. (Id.) Petitioners admit that no hearing was requested during the ten-day period, although they blame their former counsel for failing to make the request. (Id. at ¶ 6.) As such, based on the facts alleged, the decision became final on August 15, 2025. The Petition was not filed until March 5, 2026, significantly beyond the 90-day deadline. Therefore, the Court lacks jurisdiction to consider the Petition for Administrative Writ of Mandate.

Petitioners argue that there are factual disputes regarding attorney fault and extrinsic mistake. CCP § 473(b) permits the court to relieve a party from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect or inexcusable mistake or neglect of an attorney who swears an affidavit attesting to such fault. However, section 473 does not provide for relief from mandatory deadlines that are deemed jurisdictional in nature. (*Jackson v. Doe* (2011) 192 Cal. App. 4th 742, 755.) Because section 1094.6 is a mandatory procedural deadline that is considered jurisdictional, Petitioners' contentions that the failure to timely file the Petition are unavailing. The first cause of action for Writ of Administrative Mandate is time-barred. The Demurrer is sustained without leave to amend.

Second Cause of Action for Writ of Traditional Mandate:

Traditional mandate proceedings are used to review actions or decisions of an administrative body or officer acting in a legislative or executive capacity. (CCP § 1085; *Michael Leslie Productions v. City of Los Angeles* (2012) 207 Cal.App.4th 1011, 1020-1021.) Petitioners assert that City's refusal to restore their tobacco retail permit, and its position that the current tobacco retail permit moratorium prevents reinstatement, constitute ongoing administrative actions subject to review under section 1085. (Pet. ¶ 25.)

Pursuant to Section 1085, [a] writ of mandate may be issued by any court to any inferior tribunal, corporation, board, or person, to compel the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station, or to compel the admission of a party to the use and enjoyment of a right or office to which the party is entitled, and from which the party is unlawfully precluded by that inferior tribunal, corporation, board, or person. (CCP § 1085(a).) To obtain an ordinary or traditional writ of mandate, the petitioner must show: "(1) A clear, present and usually ministerial duty on the part of the respondent; and (2) a clear, present and beneficial right in the petitioner to the performance of that duty." (*Santa Clara County Counsel v. Woodside* (1994) 7 Cal.4th 525, 539-49 (citations omitted).)

Respondent argues that Petitioners are not entitled to traditional writ relief for the refusal to restore their tobacco permit because Petitioners failed to exhaust the administrative remedies. "Under the doctrine of exhaustion of administrative remedies, 'where an administrative remedy is provided by statute, relief must be sought from the administrative body and this remedy exhausted before the courts will act.'" (*Park Area Neighbors v. Town of Fairfax* (1994) 29 Cal.App.4th 1442, 1447.) Exhaustion is a jurisdictional prerequisite, which must occur before the court can get involved. (*Id.*) "In order to satisfy the exhaustion of administrative remedies requirement, 'the exact issue raised in the lawsuit must have been presented to the administrative agency so that it will have had an opportunity to act and render the litigation unnecessary.'" (*Harrington v. City of Davis* (2017) 16 Cal.App.5th 420, 441.) A demurrer may properly be sustained based on the failure to plead exhaustion of administrative remedies. (*Tejon Real Estate, LLC v. City of Los Angeles* (2014) 223 Cal.App.4th 149, 156.)

Here, the City provided for an administrative hearing if the request was filed within ten days of the Notice. According to the facts, alleged, Petitioners failed to request a hearing within ten days. As such, Petitioners failed to exhaust the administrative remedies.

However, the administrative remedies exhaustion rule has several exceptions, including but not limited to: (1) when the administrative agency does not provide an adequate remedy or (2) when it is futile to pursue the administrative remedy. (*Campbell v. Regents of University of California* (2005) 35 Cal.4th 311, 322; (*Steinhart v. County of Los Angeles* (2010) 47 Cal.4th 1298, 1313; *Los Globos Corp. v. City of Los Angeles* (2017) 17 Cal.App.5th 627, 633.) The futility exception is very narrow and only applies where a petitioner "can positively state that the administrative agency has declared what its ruling will be in a particular case." (*Steinhart, supra*, 47 Cal.4th at 1313-14.) Further,

the administrative remedy also must comport with due process. (*Bockover v. Perko* (1994) 28 Cal.App.4th 479, 486.) Petitioners have not alleged any facts showing that the administrative hearing offered by the City was inadequate or failed to comport with due process. Nor are there facts suggesting that the City had declared that it would not restore the Permit if Petitioners had timely requested a hearing. As such, they have not established that they were excused from the exhaustion requirement.

However, in addition to challenging the decision to deny restoration of the previously revoked Permit, which is more suited for an administrative mandate, Petitioners also appear to challenge the tobacco permit moratorium implemented by the City, which allegedly prevents Petitioners from applying for a new tobacco retail permit. (Pet., ¶¶ 9, 25.) As stated above, a petition for traditional mandamus may be used to challenge a quasi-legislative decision of a local agency. “Quasi-legislative acts involve the adoption of rules of general application on the basis of broad public policy, while quasi-judicial acts involve the determination and application of facts peculiar to an individual case.” (*Alborzi v. University of Southern California* (2020) 55 Cal. App. 5th 155, 169.) “The inquiry in a traditional mandamus proceeding, in which the trial court reviews quasi-legislative acts, is limited to whether the local agency’s action was arbitrary, capricious, or entirely without evidentiary support, and whether it failed to conform to procedures required by law.” (*California Public Records Research, Inc. v. County of Alameda* (2019) 37 Cal. App. 5th 800, 805.) If the agency’s action was legislative, its findings are reviewed in the trial court by the arbitrary and capricious standard, whereas either independent judgment or substantial evidence standards apply to quasi-judicial decision. (*California Aviation Council v. City of Ceres* (1992) 9 Cal. App. 4th 1384, 1393.)

Although the Petition is somewhat vague as to the terms, it appears that the moratorium is a generally applicable rule barring new tobacco permits within the City that applies to all new permit applications until September 2026. (Pet. ¶ 9.) Thus, the moratorium is a quasi-legislative act by the City. In its Demurrer, the City does not address the moratorium at all or make any argument that the moratorium is proper and conformed with required law. Accordingly, the Demurrer is overruled as to the second cause of action.¹

3.

CASE #	CASE NAME	HEARING NAME
CVRI2402073	BOLORIZADEH vs NATIONAL DEFAULT SERVICING CORPORATION	MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, REQUESTS FOR ADMISSION, AND REQUESTS FOR PRODUCTION OF DOCUMENTS, SET TWO

Tentative Ruling: Hearing continued to 9/9/2026

¹ To be sustained, a demurrer must dispose of an entire cause of action. (*PH II, Inc. v. Superior Court* (1995) 33 Cal. App. 4th 1680, 1682.) A demurrer will not lie as to only a portion of a cause of action. (*Poizner v. Fremont General Corp.* (2007) 148 Cal. App. 4th 97, 119.)

4.

CASE #	CASE NAME	HEARING NAME
CVRI2403260	QUIJANO vs GENERAL MOTORS, LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Plaintiffs, Juan and Sonya Quijano, allege that on 7/26/23, he purchased a new 2024 Chevrolet Silverado for \$95,316.72 from Riverside Chevrolet, which was accompanied by warranties. Defendant General Motors, LLC manufacture red the vehicle. Plaintiffs allege the vehicle was delivered with serious defects and nonconformities to warranty including the engine and steering system. Plaintiffs presented the vehicle for repairs to a GM authorized repair facility on several occasions, which represented the vehicle was repaired but, was unable to conform it to the warranty after a reasonable number of repair attempts. Plaintiffs continued to experience symptoms of the defects, which impaired the use, value and/or safety of the vehicle. Defendant refused to repurchase or replace the vehicle. Plaintiffs filed their complaint on 6/12/24 alleging three causes of action for violations of the Song Beverly Act (SBA): 1) breach of express warranty; 2) breach of implied warranty; and 3) violation of Civil Code § 1793.2.

Now, Plaintiffs move for \$48,083.34 in attorneys' fees and costs. This amount consists of \$44,564.17 in attorneys' fees, an additional \$2,250 to review Defendant's opposition, draft the reply, and attend the hearing on this motion, and \$1,269.17 in costs. Plaintiffs state they are the prevailing party under the Song-Beverly Act and pursuant to the CCP § 998 Offer agreed to between the parties. Plaintiffs argues they are thus entitled to attorneys' fees and provides support for the requested hourly rates and billing entries.

In opposition, Defendant argues the motion should be denied entirely as untimely. In the alternative, Defendant challenges the reasonableness of the rates, argues entries are excessive, and that no multiplier is warranted.

In reply, Plaintiffs argues no judgment has been entered and that the court retained jurisdiction under CCP § 664.6 to enforce the settlement, which would include the issue of attorneys' fees. Plaintiff otherwise attempts to further justify the rates and billing entries.

ANALYSIS

The Song-Beverly Act contains a cost-shifting provision that expressly allows prevailing plaintiffs to recover their costs and expenses, including attorney fees. Civil Code §1794(d) provides: "If the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." There is no dispute that Plaintiffs are the prevailing party in the action.

The main issue is the timeliness of Plaintiffs' motion. In arguing the motion is untimely, Defendant cites to California Rules of Court, Rule 3.1702(b)(1), which states: "A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court--including attorney's fees on an appeal before the rendition of judgment in the trial court--must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case or under rules 8.822 and 8.823 in a limited civil case." The normal time limit for filing a notice of appeal (and an attorney fee motion) is 60 days after the clerk's or any party's service of notice of entry of judgment, or 180 days after the date of entry, whichever is the earliest. (CRC 8.104(a).)

Defendant also cites to a recent Fourth District Court of Appeal decision, *Hatlevig v. General Motors, LLC* (2026) 118 Cal.App.5th 644 ("*Hatlevig*"). In *Hatlevig*, the parties reached a settlement that agreed the plaintiff was the prevailing party for purposes of attorneys' fees. (*Id.* at 646.) At a trial readiness conference, plaintiff notified the court of the settlement and the court ordered a dismissal be filed within 45 days. (*Id.*) The clerk generated a "Notice of Dismissal by Court" which stated the case would be deemed dismissed without prejudice on 8/15/2023 unless a judgment or dismissal was filed or a party appeared to show good cause why the case should not be dismissed. (*Id.* at 647.) Neither event occurred by 8/15/2023. (*Id.*)

On 8/31/2023, the *Hatlevig* plaintiff filed a motion for attorneys' fees and in opposition, General Motors argued the motion was untimely because it had not been served within 180 days of the date of settlement, citing to California Rules of Court, Rule 3.1702(b)(1). (*Id.*) The trial court denied the motion, agreeing with General Motors that it was untimely because the case was dismissed on 8/15/2023 and the plaintiff filed the motion more than 180 days thereafter. (*Id.*)

The Fourth District affirmed, agreeing that the "event" that "started the clock running" is the conclusion of the litigation on its merits on 8/15/2023. (*Id.* at 649.) The Fourth District stated, "Rule 3.1702 does not require an appealable order or judgment even though it uses 'the time for filing a notice of appeal' to set the deadline for serving and filing a motion for attorney fees" and that, "A voluntary dismissal, though not appealable, starts the clock running on the time to move for attorney fees when the dismissal concludes the litigation and triggers a right to fees." (*Id.* [citations omitted].) The court recognized that the actual dismissal order was not filed until 6/17/2024, when the trial court signed a minute order dismissing the operative complaint without prejudice, but stated that date was "...not the date of dismissal for purposes of starting the clock running on the time *Hatlevig* had to move for attorney fees." (*Id.* at 650.) The Fourth District noted that *Hatlevig* implicitly acknowledged the case had been dismissed by filing its motion for attorneys' fees on 8/31/2023 – but failing to serve it until two months later. (*Id.*) The court thus upheld the trial court's denial of the motion for attorneys' fees because 180 days after the dismissal was 2/11/2024, and while *Hatlevig* filed the motion before that date, it was not served until after the 180 day deadline expired. (*Id.*)

A similar timeline and procedural history are seen in this case. On 8/7/2025, Plaintiffs filed a notice of settlement of the entire case. On 8/12/2025, the court issued a Notice of Order to Show Cause re: Dismissal After Conditional Settlement. On 11/21/2025, on its own motion, the court dismissed the case without prejudice for the failure of Plaintiffs to file in a timely fashion a declaration in response to an order to show cause why the matter should not be dismissed. Under *Hatlevig*, 11/21/2025 is the date the clock began to run for Plaintiffs to file the motion for attorneys' fees – which makes 5/20/2026 the deadline by which Plaintiffs needed to bring this motion. Plaintiffs filed the motion on 5/21/2026, one day late.

Plaintiffs' arguments in opposition are without merit. Plaintiff argues *Madrigal v. Hyundai Motor America* (2023) 90 Cal.App.5th 385 controls. However, *Madrigal* involves the interpretation of the cost-shifting provisions under CCP § 998 and does not address the filing deadlines for fee motions under Rules 3.1702 or 8.104. Moreover, Plaintiffs failed to file the CCP § 998 Offer or enter judgment thereunder. Rather, just as in *Hatlevig*, Plaintiffs failed to respond to the court's order to show cause as to why the case should not be dismissed.

Plaintiffs also argue that the court's retention of jurisdiction under CCP § 664.6 and the lack of a final judgment means the 180 day clock has not started. But this is entirely inapposite to the ruling in *Hatlevig* that makes clear Rule 3.1702 "...does not require an appealable order or judgment" to begin the deadline for serving and filing a motion for attorneys' fees. (*Hatlevig*, *supra*, 118 Cal.App.5th at 649.)

Finally, Plaintiffs state that the court "vacated" the 11/21/2025 dismissal at the order to show cause hearing on 11/24/2025 and thus, the two orders conflict such that the last in time order must be given preclusive effect. (See Plaintiffs' Reply, p. 6:24-7:9; See also, Declaration of Allen Amarkarian in Support of Reply ¶ 7.) While the court entered a minute order on 11/24/2025 stating the matter had been dismissed without prejudice and the court retained jurisdiction under CCP § 664.6, the order states there were no appearances and the docket indicates the OSC hearing itself was vacated. The 11/24/2025 minute order likewise does not mention vacating the 11/21/2025 order, which is ultimately the dismissal signed by the Court. These are not conflicting rulings and even so, Plaintiffs do not cite any binding authority in support of this argument.

The hearing on this motion was previously set for 7/9/2026. The court continued the hearing, explaining, "Plaintiff reports that there are two (2) conflicting orders filed by Department 3 in regards to with and without prejudice." Plaintiff filed a supplemental brief, as allowed by the court's 7/9/2026 ruling, again arguing that the 11/21/2025 was with prejudice. But a review of the 11/21/2025 Order of Dismissal clearly states that "The dismissal is *without* prejudice..." (emphasis in original.)

So again, these are not conflicting rulings and there is still no evidence (other than Plaintiff counsel's declaration which already misstates the court's 11/21/2025 ruling) that the court actually vacated the 11/21/2025 ruling on 11/24/2025.

For these reasons, the court DENIES the motion as untimely.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2506503	FIERRO AMARILLAS vs TALKOV	MOTION FOR JUDGMENT ON THE PLEADINGS ON 1ST AMENDED COMPLAINT

Tentative Ruling:

The moving party was dismissed on 7/28/2026, thus this motion is moot.